

Mohd. Naseem v. State of U.P. and 4 Others

High Court of Judicature at Allahabad · Division Bench · 5 April 2023 · WRIT - C No. 10541 of 2023 · **Writ disposed; objection under clause 6.5; recovery stayed six weeks.**

HEADNOTE

A writ challenging a recovery citation for electricity dues, where the consumer disputed the correctness of the bills while offering to pay the correct amount, was disposed of with liberty to file an objection before the recovering authority within two weeks, to be decided by a speaking order. The department had stated that the dispute lay under clause 6.5 of the U.P. Electricity Supply Code, 2005. The recovery remains in abeyance for six weeks and thereafter follows that decision.

FACTUAL SUMMARY

Mohd. Naseem challenged a recovery citation dated 15 February 2023 issued by respondent No. 3 for electricity dues. He stated that he was ready to pay the correct amount, which the Court treated as a dispute over the correctness of the bills. On 31 March 2023 the writ was ordered to be listed afresh showing Sri Narendra Kumar Tiwari as counsel for the electricity department. On 5 April 2023 that counsel submitted that the dispute could be decided under clause 6.5 of the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

Disputed bill sent to clause 6.5 objection; recovery kept in abeyance

HOLDING

The electricity department stated that the petitioner's dispute over the correctness of the bills could be decided under clause 6.5 of the U.P. Electricity Supply Code, 2005. Accordingly, the writ was disposed of with liberty to the petitioner to file an objection before respondent No. 3 within two weeks, which that respondent is to decide by a speaking order. The recovery citation dated 15 February 2023 remains in abeyance for six weeks and thereafter abides by the decision on the objection. ¶ 2

PRINCIPLE TAGS

clause-6.5-alternate-remedy The writ against the recovery citation was not decided on the bill. It was disposed of with liberty to object before respondent No. 3 within two weeks, the department having invoked clause 6.5 as the forum for the dispute. ¶ 2

clause-6.5-statutory-remedy-disputed-bill The petitioner offered to pay the correct amount and thereby disputed the bills. The Court treated clause 6.5 as the remedy for that correctness dispute and left the bill to a speaking order on the objection. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS AND QUANTUM OF THE ELECTRICITY DUES COVERED BY THE RECOVERY CITATION DATED 15 FEBRUARY 2023

Left to respondent No. 3 on an objection to be filed within two weeks and decided by a speaking order. ¶ 2